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Judgment Sheet

IN THE LAHORE HIGH COURT LAHORE

JUDICIAL DEPARTMENT

W.P. No.215163 of 2018

Syed Khurshid Anwer Rizvi

Versus

The Registrar, Lahore High Court and another

J U D G M E N T

Date of Hearing	**02.06.2026**
For the petitioner	M/s Mohsin Mumtaz, Aqeel Khokhar and Ali Shazib, Advocates. Mr. Muhammad Hamza, Advocate (W.P. No.230528-18).
For respondents	Mr. Zubdatul Hussain, Advocate for the respondents. Mr. Salman Asif Warraich, Assistant Advocate General, Punjab.

Raheel Kamran J:- This single judgment shall govern the titled Writ Petition as well as Writ Petition No.230528 of 2018 as both these matters stem from withdrawal of Superior Executive Allowance for the Registrar, Lahore High Court pursuant to the decision of the Administration Committee of this Court in its meeting dated 05.03.2018, followed by orders/letters for recovery of such allowance from the petitioners.

2. Vide Order Endst.No.6125 B/I-A-2(a) dated 09.02.2017 issued by the Additional Registrar (B & F) for the Registrar, Lahore High Court, Lahore, Superior Executive Allowance in favour of the Registrar, Lahore High Court, Lahore was sanctioned at the rate of Rs.4,00,000/- per month with effect from 26.01.2017. The petitioner in the titled Writ Petition being posted as the Registrar at the relevant time had been drawing the said allowance till his transfer from the post of Registrar till 07.02.2018.

The petitioner in Writ Petition No.230528 of 2018 being posted as the Director General of the Punjab Judicial Academy, Lahore had also been drawing the above referred allowance on the strength of parity of pay and perks with that of the Registrar, Lahore High Court, Lahore.

By way of Order bearing Endst. No.5106/1-A-2(a) dated 27.03.2018 (hereinafter to be referred as "the impugned order") issued by the Additional Registrar (B & F) on behalf of the Registrar, Lahore High Court, Lahore, the order of sanction of Special Executive Allowance was withdrawn from the date of its issuance. The said order also stated for recovery of the amount already received by the petitioners as Special Executive Allowance and the petitioners were accordingly required to deposit the amounts already received by them. It is pertinent to note here that the impugned order was issued pursuant to the decision of Administration Committee of this Court in its meeting dated 05.03.2018.

3. During arguments, learned counsel for the respondents raised a preliminary objection qua maintainability of these petitions before this Court. The objection is premised mainly on the assertion that the impugned order was issued pursuant to the decision of Administration Committee of this Court but it is well settled legal position that a petition under Article 199(5) does not lie against the executive, administrative or consultative acts of the Chief Justice, the Judges or the Administrative Committee. It has been added by the learned counsel for the respondents that the petitioners are associated with Punjab Judicial Service and as such they could have approached the Punjab Subordinate Judiciary Service Tribunal which has exclusive jurisdiction in respect of matters relating to the terms and conditions of service of the members of Subordinate Judiciary.

4. In rebuttal, learned counsel for the petitioner contends that the preliminary objection raised on behalf of the respondents is misconceived inasmuch as the controversy involved in the present petitions does not fall within the mischief of a service matter in the strict sense. It is argued that the petitioner is aggrieved of withdrawal of a financial benefit which had already been sanctioned and availed by him under a valid order issued by the competent authority and therefore, the *lis* essentially relates to an accrued/vested right and not to any matter concerning appointment, promotion, seniority, transfer, posting, disciplinary proceedings or any other conventional term and condition of service. Learned counsel submits that once the Superior Executive Allowance had been sanctioned and paid to the petitioner, the same could not be withdrawn retrospectively nor could any recovery be effected in respect of the amount already received by him in good faith and without any misrepresentation, fraud or concealment on his part. It is further contended that even if the competent authority was empowered to discontinue the allowance for future, the impugned order, to the extent it operates retrospectively and directs recovery of the amount already paid, is without lawful authority, *coram non judice* and violative of settled principles governing accrued rights. In support of his contention, learned counsel has placed reliance on the case of *"The Engineer-in-Chief Branch through Ministry of Defence, Rawalpindi and another v. Jalaluddin"* **(PLD 1992 SC 207)** and submits that an amount received by an employee under a *bona fide* belief of lawful entitlement cannot subsequently be recovered merely on account of change of administrative opinion. Learned counsel further submits that where an order is passed without jurisdiction or in violation of the principles of natural justice, constitutional jurisdiction of this Court is not ousted, notwithstanding availability of any alternate remedy. In support of this proposition, learned counsel has referred to the judgment in the case of "*Muhammad Rafiq v. Vice-Chancellor, Allama Iqbal Open University and 3 others*" **(2023 PLC (C.S.) 1143)**. It is also argued that Article 199 of the Constitution can be invoked where the impugned action is patently without lawful authority, particularly when the petitioner has no equally efficacious remedy against an order which adversely affects his vested financial rights.

5. Learned counsel appearing for the petitioner in the connected Writ Petition No.230528 of 2018, while adopting the above submissions, has further argued that the said petitioner was appointed as Director General, Punjab Judicial Academy, Lahore, and had received the Superior Executive Allowance not in her capacity as District & Sessions Judge but by virtue of holding a statutory office under the Punjab Judicial Academy Act, 2007. It is submitted that the Punjab Judicial Academy is a distinct statutory body and its affairs are regulated by the Board of Management constituted under the said Act. According to learned counsel, the perks and privileges attached to the office of Director General were approved by the Board of Management and the petitioner was extended parity of pay and perks with the Registrar, Lahore High Court, Lahore. It is, therefore, maintained that neither the Punjab Judicial Academy nor its Board of Management can be treated as a departmental authority under the Punjab Subordinate Judiciary Service Tribunal Act, 1991 and the dispute arising out of withdrawal of a benefit attached to the statutory office of Director General does not fall within the jurisdiction of the Punjab Subordinate Judiciary Service Tribunal. Learned counsel further contends that the recovery notices were issued after the petitioner had ceased to hold the office of Director General and after her retirement had taken effect; therefore, the employer-employee relationship no longer subsisted and no service remedy could be said to be available to her. It is also argued that the impugned recovery was not ordered by the Board of Management of the Academy, which alone had statutory control over the affairs of the Academy and was instead founded upon the order dated 27.03.2018 whereby the allowance of the Registrar, Lahore High Court, was withdrawn pursuant to the decision of the Administration Committee. On this basis, learned counsel submits that the impugned action, so far as the petitioner in the connected petition is concerned, is without jurisdiction, legally incompetent and amenable to the constitutional jurisdiction of this Court. In support of his submissions, learned counsel has placed reliance on the cases of *"Zahoor Ahmad v. District Accounts Officer and others"* **(2024 PLC (C.S.) 135 Lahore)**, *"Shafi Muhammad Mughal, Superintendent of Police (Acting Charge) Pakistan Railways Police, Quetta v. Secretary, Establishment Division, Government of Pakistan, Islamabad and 5 others"* **(2005 PLC (C.S.) 679)**, *"The Engineer-in-Chief Branch through Ministry of Defence, Rawalpindi and another v. Jalaluddin"* **(PLD 1992 SC 207)**, *"Shams ur Rehman v. Military Accountant General, Rawalpindi and another"* **(2020 SCMR 188)**, *"Government of Pakistan through Secretary Ministry of Commerce, Pak. Secretariat, Islamabad v. Messrs Village Development Organization, V.P.O. Landwan, District Laki Marwat through (General Attorney) Sher Adam"* **(2005 SCMR 492)** and *"Secretary to the Government of Pakistan Ministry of Finance and others v. Muhammad Hussain Shah and others"* **(2005 SCMR 675)**, to contend that accrued rights cannot be taken away retrospectively and recovery of amounts received in good faith cannot be ordered in the absence of fraud, misrepresentation or concealment.

6. After hearing the learned counsel for the parties and perusing the available record, it is noticed at the outset that the objection qua maintainability raised by the learned counsel for the respondents goes to the very root of the matter. Since the jurisdiction of this Court under Article 199 of the Constitution has been invoked against an order which, admittedly, was issued pursuant to a decision of the Administration Committee of this Court, it is appropriate and indeed necessary to decide the preliminary objection first so as to ascertain whether the proceedings are properly before this Court. Unless this Court is satisfied that the petitions are maintainable, it would not be proper to embark upon examination of the merits of the controversy relating to entitlement, withdrawal or recovery of the Superior Executive Allowance.

7. The foundational fact is not disputed. The Superior Executive Allowance was sanctioned in favour of the Registrar, Lahore High Court, Lahore, vide order dated 09.02.2017. The petitioner in the titled writ petition was drawing the said allowance by virtue of his posting as Registrar, Lahore High Court, Lahore. The petitioner in the connected writ petition was drawing the same allowance on the strength of parity of pay and perks with the Registrar, Lahore High Court, Lahore. The impugned order dated 27.03.2018, whereby the earlier sanction of the allowance was withdrawn from the date of its issuance and recovery of the amount already received was required, was issued in pursuance of the decision of the Administration Committee of this Court taken in its meeting dated 05.03.2018. Thus, the real grievance of both petitioners essentially emanates from the decision of the Administration Committee whereby the allowance sanctioned for the office of Registrar was withdrawn.

8. The legal position with regard to maintainability of a constitutional petition against executive, administrative or consultative acts of the Chief Justice, Judges or Administration Committee of a High Court is no longer *res integra*. In the case of *"Gul Taiz Khan Marwat v. The Registrar, Peshawar High Court, Peshawar and others"* **(PLD 2021 SC 391)**, a larger Bench of the Supreme Court while deciding the question of maintainability of a Constitutional Petition under Article 199 of the Constitution against the administrative orders passed by an Administrative Committee or the Chief Justice of High Court, authoritatively held that the Chief Justice or Judges of a High Court, while exercising executive, administrative or consultative powers, do not act as *persona designata* but act for and on behalf of the High Court. Consequently, such acts are not amenable to the constitutional jurisdiction of a High Court under Article 199 of the Constitution. In the said judgment, the Supreme Court also clarified that no distinction can be drawn between judicial and administrative functions of the High Court for purposes of Article 199(5) and that executive or administrative actions of the Chief Justice, Judges or Administrative Committee, unless falling within the recognized exceptions, cannot be made subject matter of a writ petition before the High Court. It is pertinent to note here that in the said judgment which was rendered by a larger Bench consisting five Honourable Judges, the earlier judgment in the case of *"Ch. Muhammad Akram v. Registrar, Islamabad High Court and others"* **(PLD 2016 SC 961)** rendered by three member Bench, wherein it had been held that *a writ may lie against an administrative/consultative/executive order passed by the Chief Justice or the Administration Committee*, was over-ruled.

9. Applying the above principle to the facts of the present case, the impugned order cannot be examined in isolation by ignoring the decision on the basis of which it was issued. The order dated 27.03.2018 is merely consequential to the decision of the Administration Committee dated 05.03.2018. The substance of the challenge, therefore, is directed against an administrative decision of the Administration Committee of this Court. Such decision, in view of Article 199(5) of the Constitution as interpreted by the Supreme Court in the case of *Gul Taiz Khan Marwat* (supra), is not amenable to the writ jurisdiction of this Court. The petitioners cannot overcome the constitutional bar by describing the impugned order as an order of recovery or by contending that vested rights have been affected. The nature and source of the impugned action remain decisive and once it is found that the action flows from an administrative decision of the Administration Committee of the High Court, the bar contained in Article 199(5) is attracted.

10. There is yet another aspect of the matter. The petitioner in the titled writ petition was a District & Sessions Judge posted as Registrar of this Court. Such posting did not alter his status as a member of the subordinate judiciary under the administrative control of the Lahore High Court. A grievance relating to emoluments, allowances or monetary benefits attached to such posting is, in essence, connected with terms and conditions of service. The Punjab Subordinate Judiciary Service Tribunal Act, 1991 provides the forum for redressal of service grievances of members of the subordinate judiciary. In the case of *"Abdullah Channah v. The Administrative Committee and others"* **(2024 SCMR 1250)**, the Supreme Court reiterated that members of the subordinate judiciary are required to avail the remedy before the relevant Service Tribunal in service matters and cannot bypass the statutory forum by filing a civil suit or a writ petition. The fact that the order have emanated from the Administrative Committee does not by itself confer jurisdiction upon the High Court under Article 199 of the Constitution when such jurisdiction is otherwise barred.

11. So far as the petitioner in the connected writ petition is concerned, much emphasis has been laid on the circumstance that she was serving as Director General, Punjab Judicial Academy, Lahore and that the Academy is a statutory body having its own Board of Management under the Punjab Judicial Academy Act, 2007. However, this distinction does not materially alter the position in the present case. The admitted basis for grant of Superior Executive Allowance to the Director General, Punjab Judicial Academy, was parity of pay and perks with the Registrar, Lahore High Court, Lahore. The allowance was not independently created for the office of Director General irrespective of the emoluments of the Registrar, rather it was extended because the Director General was to draw pay and perks equivalent to those admissible to the Registrar of this Court. Consequently, when the allowance sanctioned for the Registrar was withdrawn pursuant to the decision of the Administration Committee, the very foundation for claiming the same allowance by the Director General on the basis of parity also disappeared. If the petitioner in the connected petition is aggrieved by such withdrawal, the challenge necessarily travels back to the basic decision whereby the allowance of the Registrar was withdrawn. That basic decision, as held above, is an administrative decision of the Administration Committee of this Court and is not amenable to writ jurisdiction under Article 199 of the Constitution.

12. The argument that the allowance had become an accrued or vested right and that recovery could not be ordered retrospectively pertains to the merits of the controversy. Similarly, the plea that the amount was received in good faith and without misrepresentation may be relevant for adjudication before a competent forum. However, such submissions cannot enlarge the constitutional jurisdiction of this Court where the Constitution itself, through Article 199(5), excludes the High Court from the definition of “person” for purposes of issuance of writs. The precedents relied upon by learned counsel for the petitioners on the question of vested rights, retrospective withdrawal and recovery of benefits already received in good faith are distinguishable at this stage because those authorities do not deal with the maintainability of a writ petition against an administrative decision of the Administration Committee of a High Court in the face of Article 199(5) of the Constitution and the law declared in the case of *Gul Taiz Khan Marwat* (supra).

13. Likewise, the submission that the petitioner in the connected petition had retired before issuance of certain recovery notices does not advance her case for purposes of maintainability. The cause of grievance still originates from withdrawal of the Superior Executive Allowance which had been granted to her solely on the basis of parity with the Registrar, Lahore High Court. The subsequent recovery letters are only consequential steps. They cannot be treated as independent orders severed from the principal decision of the Administration Committee. Therefore, the bar to the maintainability of a constitutional petition cannot be avoided merely by challenging the consequential recovery correspondence instead of the principal administrative decision from which such correspondence flows.

14. For the foregoing reasons, this Court is persuaded to hold that the preliminary objection raised by learned counsel for the respondents is well-founded. The impugned order dated 27.03.2018 and the consequential recovery letters stem from the decision of the Administration Committee of this Court dated 05.03.2018. In view of Article 199(5) of the Constitution and the law laid down by the Supreme Court in the case of *Gul Taiz Khan Marwat* (supra) no writ petition is maintainable before this Court against such executive, administrative or consultative act of the Administration Committee. The petitions, therefore, are not maintainable. Resultantly, both these writ petitions are dismissed as not maintainable. It is, however, clarified that dismissal of these petitions on the ground of maintainability shall not preclude the petitioners from recourse to such remedy, if any, as may be available to them before the competent forum in accordance with law. There shall be no order as to costs.

(RAHEEL KAMRAN)
JUDGE

Approved for reporting.

JUDGE

*Azhar**